

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1013

Introduced by Hansen, 16.

Read first time January 13, 2026

Committee:

- 1 A BILL FOR AN ACT relating to state institutions; to amend section
- 2 83-107.01, Reissue Revised Statutes of Nebraska; to change
- 3 requirements for the youth rehabilitation and treatment centers; and
- 4 to repeal the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 83-107.01, Reissue Revised Statutes of Nebraska,
2 is amended to read:

3 83-107.01 (1) The official names of the state institutions under the
4 supervision of the Department of Health and Human Services shall be as
5 follows: (a) Beatrice State Developmental Center, (b) Lincoln Regional
6 Center, (c) Norfolk Regional Center, and (d) ~~Hastings Regional Center,~~
7 ~~{e} Youth Rehabilitation and Treatment Center-Kearney , and {f} Youth~~
8 ~~Rehabilitation and Treatment Center-Geneva.~~

9 ~~(2)(a) This subsection applies beginning July 1, 2021.~~

10 ~~(2)(a) {b}~~ Except as provided in subdivision ~~(2)(c) {2}(e)~~ of this
11 section, so long as the department operates the Youth Rehabilitation and
12 Treatment Center-Kearney, such institution shall be a single-sex
13 treatment center. It may be used for the treatment of boys or girls but
14 not both simultaneously used for the treatment of boys only.

15 ~~{c} Except as provided in subdivision (2)(e) of this section, so~~
16 ~~long as the department operates the Youth Rehabilitation and Treatment~~
17 ~~Center-Geneva, such institution shall be used for the treatment of girls~~
18 ~~only.~~

19 ~~(b) {d}~~ For any ~~other~~ facility operated and utilized as a youth
20 rehabilitation and treatment center in compliance with state law, the
21 department shall ensure safe and appropriate gender separation.

22 ~~(c) {e}~~ In the event of an emergency, the department may use the
23 Youth Rehabilitation and Treatment Center-Kearney, the Youth
24 Rehabilitation and Treatment Center-Geneva, or another facility operated
25 and utilized as a youth rehabilitation and treatment center in compliance
26 with state law for the treatment of juveniles of both genders for up to
27 seven days. During any such use the department shall ensure safe and
28 appropriate gender separation.

29 ~~(d) {f}~~ For purposes of this section, emergency means a public
30 health emergency or a situation including fire, flood, tornado, natural
31 disaster, or damage to the institution that renders an institution

1 uninhabitable. Emergency does not include inadequate staffing.

2 (3) It is the intent of the Legislature that no institution under
3 the supervision of the Department of Health and Human Services at which
4 the department provides inpatient or subacute substance abuse or
5 behavioral health residential treatment for juveniles under the
6 jurisdiction of a juvenile court shall delay such treatment to a juvenile
7 when such treatment has been determined necessary under subsection (2) of
8 section 43-407 or has been ordered by a juvenile court.

9 **Sec. 2.** Original section 83-107.01, Reissue Revised Statutes of
10 Nebraska, is repealed.